



DEPARTMENT OF JUSTICE

Justice Building
1162 Court Street NE
Salem, Oregon 97301-4096
Telephone: (503) 378-6002

September 24, 2026

VIA E-MAIL ONLY: rsw@rswfire.com

Robert Samuel White
P.O. Box 334
Reedsport, OR 97467

Re: Petition for Public Records Disclosure Order
Oregon Governor's Office
DOJ File No.: 121010-GA0187-26

Dear Mr. White:

This letter is the Attorney General's response to your September 24, 2026, petition for disclosure under the Oregon Public Records Law, ORS 192.311 to 192.478. Your petition asks the Attorney General to order the Oregon Governor's Office to respond to a public records request made by you. Any person who has been denied the right to inspect or to receive a copy of any public records of a state agency may petition the Attorney General to determine whether the records may be withheld from public disclosure. *See* ORS 192.411(1). However, if the public records at issue are in the custody of an elected official, then "no petition to require disclosure may be filed with the Attorney General," and if a petition is filed, "it shall not be considered by the Attorney General * * *." ORS 192.427.

Because your petition seeks records in the custody of the Governor, an elected official, we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.

Sincerely,

BENJAMIN GUTMAN
Deputy Attorney General

KG9:pjn

c via e-mail only: Cameron Miles, Government Accountability Attorney, Office of Governor Kotek